

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Miriam Lynch	Team: Squad #09	CCRB Case #: 201707533	☒ Force ☐ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Tuesday, 09/05/2017 11:30 PM	Location of Incident: 1933 Victory Boulevard	18 Mo. SOL 3/5/2019	Precinct: 120
Date/Time CV Reported Wed, 09/06/2017 3:20 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 09/11/2017 4:35 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Christophe Eng	15563	944537	120 PCT
2. POF Elizabeth Fonti	25028	963033	120 PCT
3. POM Christian Pinez	08445	957958	120 PCT
4. POM Paul Bartelotti	18972	958794	120 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Christophe Eng	Force: Police Officer Christopher Eng used physical force against § 87(2)(b)	A . Exonerated
B . POF Elizabeth Fonti	Force: Police Office Elizabeth Fonti used physical force against § 87(2)(b)	B . Exonerated
C . POM Paul Bartelotti	Force: Police Officer Paul Bartelotti used physical force against § 87(2)(b)	C . Exonerated
D . POM Christian Pinez	Force: Police Officer Christian Pinez used physical force against § 87(2)(b)	D . Exonerated
E . POM Christophe Eng	Force: Police Officer Christopher Eng used physical force against § 87(2)(b)	E . Exonerated
F . POM Christophe Eng	Force: Police Officer Christopher Eng struck § 87(2)(b) with an asp.	F . Exonerated
§ 87(4-b) § 87(2)(g)		

Case Summary

On September 6, 2017, Sgt. Robert Turbiak of the 120th Precinct filed this complaint on behalf of injured prisoner § 87(2)(b). Sgt. Turbiak did not witness this incident. On September 5, 2017, at approximately 11:30 p.m., § 87(2)(b) shoplifted items from the CVS store located at 1933 Victory Boulevard in Staten Island. PO Christopher Eng and PO Elizabeth Fonti, both of the 120th Precinct, responded, and were shortly followed PO Christian Pinez and PO Paul Bartelotti, also of the 120th Precinct. PO Eng and PO Fonti brought § 87(2)(b) to the ground, and PO Eng punched him (**Allegations A, B, C, D, and E: Force, exonerated**). PO Eng also used an asp against § 87(2)(b) (**Allegation F: Force, exonerated**). § 87(2)(g), § 87(4-b)

Video of this incident was obtained from the CVS at 1933 Victory Boulevard (Board Review 1).

§ 87(2)(b) sustained a cut on his forehead as a result of this incident. § 87(2)(b) was charged with petit larceny, § 87(2)(b), § 86(1)(2)(a), § 87(2)(c).

Findings and Recommendations

Allegation (A) Force: Police Officer Christopher Eng used physical force against § 87(2)(b)

Allegation (B) Force: Police Officer Elizabeth Fonti used physical force against § 87(2)(b)

Allegation (C) Force: Police Officer Paul Bartelotti used physical force against § 87(2)(b)

Allegation (D) Force: Police Officer Christian Pinez used physical force against § 87(2)(b)

Allegation (E) Force: Police Officer Christopher Eng used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Christopher Eng struck § 87(2)(b) with an asp.

It is undisputed that an employee from the CVS at 1933 Victory Boulevard called officers just before § 87(2)(b) carried a basketful of merchandise out of the store. He did not pay for the merchandise. It is undisputed that officers arrived on scene when this occurred.

§ 87(2)(b) stated that the officers stopped him outside of the CVS. He stated that he stood still, despite the officers telling him not to resist. He acknowledged that he did not acquiesce to their commands that he place his hands behind his back. He denied pushing against or otherwise actively resisting the officers as they attempted to handcuff him. He stated that he was taken to the ground by officers, who hit him in the back, face, shoulders, back, and knees with fists, elbows, and knees. He could not attribute any of the blows to any specific officers, but he stated that he was struck more than 10 times in total. § 87(2)(b) stated that on the ground, he was moving his face, and moving his shoulders to block his face from the officers, but not

moving in any other way. § 87(2)(b) sustained a cut on his head that did not require stitches (Board Review 2).

The officers in this case were consistent in their testimony in that § 87(2)(b) was ordered back into the CVS after he left with the merchandise. He then attempted to pay for the merchandise, but the manager of the store wanted § 87(2)(b) to be arrested. PO Eng then placed one handcuff on § 87(2)(b)'s hand, and § 87(2)(b) began to move his arms back and forth. PO Eng commanded § 87(2)(b) to stop resisting arrest, and § 87(2)(b) did not do so. The officers then took him to the ground. § 87(2)(b) landed face down on top of PO Eng's leg (Board Reviews 3, 4, 5, and 6). § 87(2)(g)

PO Eng stated that the leg that § 87(2)(b) fell on top of was the leg on which he carried his off-duty firearm. He attempted to pull § 87(2)(b)'s arm in order to handcuff it while § 87(2)(b) was on top of his leg. When he was unsuccessful in doing so, he punched § 87(2)(b) several times in his back. When § 87(2)(b) continued to pull his arm away from PO Eng, PO Eng struck him in the back less than five times with his asp. He then used his asp to pry § 87(2)(b)'s arm from underneath him, and was able to handcuff § 87(2)(b). PO Eng sustained a sprained ankle from this incident.

All of the other officers confirmed that they assisted in taking § 87(2)(b) to the ground, but they did not admit to striking him. Only PO Bartelotti remembered PO Eng punching § 87(2)(b) and striking him with an asp. PO Fonti, PO Bartelotti, and PO Pinez all remembered § 87(2)(b) pulling his arms away and tensing his body throughout the incident (Board Reviews 4, 5, and 6).

Video from the incident location, inside of the CVS, shows PO Eng placing one handcuff on § 87(2)(b)'s arm, and then § 87(2)(b) pulling his arms away from PO Eng. PO Eng, PO Fonti, PO Bartelotti, and PO Pinez all took him to the ground. Approximately one minute into the video, PO Eng punched § 87(2)(b) approximately three times, and then took out his asp and appeared to strike § 87(2)(b) with it once. It is not visible where on § 87(2)(b)'s body he was struck. § 87(2)(b) was handcuffed shortly after the asp strike (Board Review 1).

Patrol Guide Procedure 221-02 stipulates that officers use an objectively reasonable amount of force, that is, what would be expected of an officer of their experience and training. The same patrol guide procedure defines punches as Level 1 force, and asp strikes as Level 2 force (Board Review 7). Patrol Guide Procedure 221-01 defines active resistance as words or motions intended to prevent officers from taking a subject into custody. The same Patrol Guide Procedure dictates that officers evaluate situations for use of force as they develop, and adjust accordingly (Board Review 8).

Though there is video in this case, there is no audio, and § 87(2)(b) himself is obstructed for a great deal of it. It does, however, corroborate that § 87(2)(b) was not standing still—as he stated that he was—as the officers were trying to take him into custody. He was, instead, moving his arms. It also corroborates the incident location that the officers provided: the inside of the CVS as opposed to the exterior sidewalk. § 87(2)(g)



§ 87(2)(b).mp4

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that Allegations **A, B, C, D, E, and F** be closed as **exonerated**.

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) was listed as a victim of § 87(2)(b)
- PO Eng has been a member of service for 10 years. Three prior complaints have been filed against him, with eight prior allegations. None has been substantiated. Case 201705225 is still pending investigation (Board Review 11).
 - § 87(2)(g)
- PO Fonti has been a member of service since January of 2017. This is the first complaint filed against her (Board Review 11).
- PO Bartelotti has been a member of service for two years. This is the first CCRB complaint filed against him (Board Review 11).
- PO Pinez has been a member of service for two years. This is the first CCRB complaint filed against him (Board Review 11).

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation, due to the injuries § 87(2)(b) sustained, and his arrest.
- On November 22, 2017, a request for a notice of claim from the New York City Office of the Comptroller was returned with negative results (Board Review 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No. 9

Investigator: _____

Signature _____ Print Title & Name _____ Date _____

Squad Leader: _____

Signature _____ Print Title & Name _____ Date _____

Reviewer: _____

Signature _____ Print Title & Name _____ Date _____

